BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,

PRINCIPAL BENCH

NEW DELHI

Company Application No.CA (CAA) 129/PB/2018

Judgment dated: 22.10.2018

Coram:

CHIEF JUSTICE (Rtd.) SHRI M.M. KUMAR,

HON'BLE PRESIDENT

&

MS. DEEPTI MUKESH,

MEMBER (JUDICIAL)

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

1. **MJI TECH PRIVATE LIMITED**

Company registered under the Companies Act, 1956

Having Registered Office at:

B27/5 (Double Storey), Ramesh Nagar

New Delhi-110015

..... Applicant Company No. 1/ Transferor Company No. 1

2. VKG ELECTRONICS PRIVATE LIMITED

Company registered under the Companies Act, 1956

Having Registered Office at:

B27/5 (Double Storey), Ramesh Nagar

New Delhi-110015

..... Applicant Company No. 2/ Transferor Company No. 2

3. GOODRE PRIVATE LIMITED

Company registered under the Companies Act, 1956

Having Registered Office at:

B27/5 (Double Storey), Ramesh Nagar

New Delhi-110015

..... Applicant Company No. 3/ Transferee Company

For the Applicants: Mr. Sandeep Kumar, CS

ORDER

M.M. KUMAR, PRESIDENT

1. This is an application filed by the applicant companies under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (for brevity 'The Act') read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'The Rules') in relation to the Scheme of Amalgamation (for brevity the "SCHEME") proposed amongst the applicants. The said Scheme is also annexed [Annexure "A"]. In terms of Sections 230 and 232 of the 2013 Act following prayers have been made for orders:-

"1. Dispensing with requirement for convening the meeting of the equity shareholders of the transferor companies and also to dispense with the requirement of issue and publication of notices for the same;

2. Issuing/ passing necessary Directions/Order as it may deem fit for the purpose of convening the meeting of the unsecured creditors and members or any class thereof of the transferor company including the requirement of issue and publication of notices for the same;

3. Issuing/passing necessary Directions/Order in respect of Applicant Company 3 as it may fit for the purpose of convening the meeting of the equity shareholders, secured and unsecured creditors and members or any class thereof of the transferee company including the requirement of issue and publication of notices for the same;

4. Issuing direction for permitting the filing of application, petition, other documents as may be required for the purpose of sanctioning the proposed Scheme of Amalgamation between MJI TECH PRIVATE LIMITED and VKG ELECTRONICS PRIVATE LIMITED and GOODRE PRIVATE LIMITED and their respective shareholders and creditors.

5. Pass such others and further orders as are deemed necessary in the facts and circumstances of the case."

2. An Affidavit in support of the application sworn for and on behalf of the Applicant Companies has been filed by one Mr. Sharad Jain being the authorized representative.

3. It is represented that the Scheme does not contemplate any corporate debt restructuring exercise as contemplated under Section 230(2) of the Act. Learned Company Secretary has taken us through the averments made in the application as well as the typed set of documents annexed there with. It is further represented that the application filed by the applicants is maintainable in view of Rule 3(2) of the Rules and Learned Company Secretary also represented that the registered offices of the applicant companies are situated within the territorial jurisdiction of this Tribunal and fall within domain of Registrar of Companies, NCT, New Delhi.

4. In relation to the Applicant Company No. 1 in the Scheme, it has been represented that company has three Equity Shareholders, no Secured Creditor and no Unsecured Creditor. All the shareholders have given their consents in the form of affidavits to the proposed Scheme. In relation to the Shareholders and Creditors Applicant Company seeks a direction for dispensing with the convening and holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

5. In relation to the Applicant Company No. 2 in the Scheme, it has been represented that company has three Equity Shareholders, no Secured Creditor and one Unsecured Creditor. All the shareholders and the sole unsecured creditor have given their consents in the form of affidavits to the proposed Scheme. In relation to the Shareholders and Creditors Applicant Company seeks a direction for dispensing with the convening and holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

6. In relation to the Applicant Company No. 3 in the Scheme, it has been represented that company has two Equity Shareholders, no Secured Creditor and no Unsecured Creditor. All the shareholders have given their consents in the form of affidavits to the proposed Scheme. In relation to the Shareholders and Creditors Applicant Company seeks a direction for dispensing with the

convening and holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

7. The above application has been placed before us and this Tribunal proceeds to entertain the same. The registered offices applicant companies are situated within New Delhi which are subject to the territorial jurisdiction of Registrar of Companies, NCT, New Delhi as well as that of this Tribunal.

8. We have perused the application and the connected documents filed along with the Scheme of Amalgamation contemplated between the Companies.

9. Applicant Company No. 1 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 26.12.1996 under the name "*MJI TECH PRIVATE LIMITED*". The authorised share capital of the Amalgamating Company is Rs One Crores only divided into Ten Lakhs equity shares of Rs. Ten each. The paid-up share capital of the Company is Rs. Sixty One Lakhs only divided into Six Lakh Ten Thousand equity shares of Rs. Ten each.

10. Applicant Company No. 2 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 08.03.1991 under the name "*VKG ELECTRONICS PRIVATE LIMITED*". The authorised share capital of the Amalgamating Company is Rs One Crores only divided into Ten Lakhs equity

shares of Rs. Ten each. The paid-up share capital of the Company is Rs. Forty-Eight Lakhs only divided into Four Lakh eighty Thousand equity shares of Rs. Ten each.

11. Applicant Company No.3 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 17.10.1995 under the name "*CH STEEL INDIA PRIVATE LIMTED*". The name of the company was changed to *"GOODRE PRIVATE LIMITED"* on 19.05.2013. The authorised share capital of the Amalgamating Company is Rs One Crores only divided into Ten Lakhs equity shares of Rs. Ten each. The paid-up share capital of the Company is Rs. 59,57,400 only divided into 5,95,740 equity shares of Rs. Ten each.

12. The Board of Directors of the Amalgamating Company and Amalgamated Company vide separate meetings held on 05.07.2018 have unanimously passed resolutions and approved the proposed Scheme of Amalgamation as contemplated above and copies of resolutions have also been placed on record by the Companies.

13. Taking into consideration the application and the documents filed therewith, we propose to issue the following directions with respect to dispensation with

calling, convening and holding of the meetings of the Shareholders, Secured and Unsecured Creditors or dispensing with the same which are as follows:-

A. In relation to the Applicant Company No.1:

i. With respect to Shareholders:

It is represented by the Applicant Company that there are 3 Shareholders in the Company all of whom have placed their consents in the form of affidavits. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented that there is no Unsecured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

B. In relation to the Applicant Company No.2 :

i. With respect to Shareholders:

It is represented by the Applicant Company that there are 3 Shareholders in the Company all of whom have placed their consents in the form of affidavits. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented that there is one Unsecured Creditor in the Company who has placed his consent-affidavit on record, the necessity of convening and holding a meeting is obviated.

C. In relation to the Applicant Company No.3 :

i. With respect to Shareholders:

It is represented by the Applicant Company that there are 2 Shareholders in the Company all of whom have placed their consents in the form of affidavits. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented that there is no Unsecured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

14. Notice of this Application shall also be served on the Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2nd Floor, Paryavaran Bhavan, CGO Complex, New Delhi-110 003, Registrar of Companies at 4th Floor, IFCI Tower, 61, Nehru Place, New Delhi-110 019; the Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi -110 001; the office of the Income Tax Department, Income Tax Officer, Ward – 7(4), Central Revenue Building, IP Estate, New Delhi-110 002 and Office of the Income Tax Department, Income Tax Officer, Additional Commissioner of Income Tax, Special Range-4, Central Revenue Building, IP Estate, New Delhi-110 002. The notices to Income Tax authorities shall disclose sufficient details like

PAN card numbers, ward numbers and assessing officers so that timely and proper reply may be filed.

The application stands allowed in the aforesaid terms.

SD/-

22.10.2021

(M.M. KUMAR)

PRESIDENT

SD/-

(DEEPTI MUKESH)

MEMBER (JUDICIAL)

Vidya